



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 13 1999

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11355
(FOURTH REVISION)

EXPIRATION DATE: April 30, 2001

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Button Transportation, Inc.
Dixon, California

(See Appendix A of this document for a list of additional grantees.)

2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of the liquefied petroleum gas (LPG) described in the application, in DOT Specification MC-331 cargo tank motor vehicles manufactured from quenched and tempered steel which are coated on the inside with a cross linked epoxy-phenolic compound. This exemption provides no relief from any regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.315(a) Note 15 as it applies to the transportation of LPG which exceeds the limitations for Classification 1 when tested in accordance with ASTM D1838-64.
5. BASIS. This exemption is based on the application of Button Transportation, Inc. dated April 20, 1999 submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous materials description/proper shipping name	Hazard Class or Division	Identification number	Packing Group
Petroleum gases, liquefied	2.1	UN 1075	N/A

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a DOT Specification MC 331 cargo tank motor vehicle manufactured from quenched and tempered steel. The tanks are to be coated internally with a volatile organic compound cross linked epoxy-phenolic designated as Plasite 7122L, manufactured by Wisconsin Protective Coatings Corp., Green Bay, WI. All other provisions of § 173.337 must be met.

b. TESTING - The DOT Specification MC 331 cargo tanks must comply with all requirements of § 173.337 and § 173.315, as applicable. Before the coating compound is applied, the tank must be non-destructively examined by the wet fluorescent magnetic particle inspection method. No rejectable indications are acceptable. All requirements of 49 CFR Part 180 also must be met.

c. MARKING - Each cargo tank must be plainly marked on the curb side near the front in letters at least 2" in height on a contrasting background, "DOT-E 11355".

d. IDENTIFICATION - This exemption applies to fifteen (15) cargo tank motor vehicles only. These tanks were manufactured by Mississippi Tank Co., Inc. and bear the following serial numbers:

T3402A1	T3402A6	439319
T3402A2	T3402A7	117063
T3402A3	T3402A8	61166
T3402A4	T3402A9	440759
T3402A5	T3402A10	TP65287

8. SPECIAL PROVISIONS.

a. After ten months of use in the service covered by this exemption, one of the ten cargo tanks must be stripped of the coating and subjected to wet florescent magnetic particle examination. Results of that test will be used in determining what if any additional testing and/or special procedures will be required for that cargo tank as well as the other nine. A copy of the results must be forwarded to the Office of Hazardous Materials Exemptions and Approvals when completed.

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- b. Persons using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each motor vehicle used to transport the hazardous material covered by this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.610 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to the exemption must receive training on the requirements and conditions of this exemption in addition to the training required by § 172.700 through § 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

qf Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S. Department of Transportation, 400 7th Street, SW, Washington, DC 20590-0001, Attention: Records Center, 202-366-5046.

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